

EEOC: Harassment in the Workplace Guidelines

Section 1: What Constitutes Harassment?

Harassment is unwelcome conduct that is based on race, color, religion, sex (including sexual orientation, gender identity, or pregnancy), national origin, older age, disability, or genetic information.

Section 2: Sexual Harassment

Sexual harassment includes unwelcome sexual advances, requests for sexual favors, and other verbal or physical harassment of a sexual nature. Derogatory comments about a person's sex are also prohibited.

Article 1: Employer Liability

Employers are liable for harassment by supervisors that results in a tangible employment action. They are also liable for a hostile work environment created by co-workers if the employer knew or should have known and failed to take prompt action.

Article 2: AI and Workplace Harassment

AI tools used in the workplace must not generate discriminatory or harassing content that could contribute to a hostile work environment based on race, religion, sex, or national origin.